

30 May 2023
Juror absent (personal reasons)
Discussion between Judge and Counsel

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Housekeeping

Tuesday, 30 May 2023
(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, I understand that you have been informed that there is a difficulty with one of the jurors --

MR JOHNSON: Yes.

MR JUSTICE GOSS: -- who is not here today and will not be here today and has indicated that they may not be here for some time for reasons that I needn't ventilate in public.

Obviously, she has a good reason for not being here today. It is hoped that some communication with her can be established at some point during today. What I'm proposing to do, subject to any submissions that either of you make, is to say to the jury that they will not be required today and to go home, but they should check with the court at the end of the afternoon, but the position at present will be that they should come in tomorrow because I think a view may be going to have to be taken tomorrow, depending on the news we receive today in respect of this juror, because we have had lot a gaps and we have already had quite a lot of gaps in relation to the evidence and there comes a time when a view has to be taken.

So that's what I'm proposing: no decision today but to say that the jury should be prepared to continue tomorrow.

MR MYERS: I'm grateful, my Lord.

One matter that occurs to us in the event that any decision has to be taken as to the juror is Ms Letby's position with regard to that, because ordinarily it's something that we would raise with the defendant so that any observation they had on that issue can be conveyed to the court. It may be that if the court is considering taking certain steps, we may have to apply to your Lordship certainly that I and my instructing solicitor can

speaking about that one discrete issue and take instructions on that if we come to that point.

MR JUSTICE GOSS: If we do. I'll hear what Mr Johnson says, but it would seem to me to be entirely appropriate.

MR JOHNSON: There would be no objection from us.

MR MYERS: I'm grateful for that. I leave it with your Lordship but it just seemed to us one issue we should keep in mind.

MR JUSTICE GOSS: We will keep it in mind, thank you for raising it, but let's wait and see how things develop --

MR MYERS: Yes, of course.

MR JUSTICE GOSS: -- and we'll take it from there. I've also received, literally moments before I came into court, an email from Mr Johnson, which presumably you have --

MR MYERS: We received it a little earlier this morning at 9.30 or 9.45, whatever time it was sent.

MR JUSTICE GOSS: What I'm proposing, again subject to any submissions, is for me to read through that material and then for you to consider what your response, if any, is going to be to it, whether it's to be in writing or you're just going to make oral submissions in relation to it, but we can address that issue today in any event --

MR MYERS: Yes, thank you.

MR JUSTICE GOSS: -- in the absence of the jury, at some time later today. Thank you very much.

Right. The jury in, please.

(In the presence of the jury)

MR JUSTICE GOSS: Members of the jury, as you know from your long experience of serving as jurors in this case, this trial cannot proceed unless all 12 of you are present.

And as you also know, I'm aware, one of your number is not present for particular personal reasons. It is therefore not possible for us to proceed today in your colleague's absence.

There is obvious uncertainty in relation to your colleague's position. What I'm going to say is this: so far as today is concerned, in a moment I'm going to say you may go and you will not be required further today.

You should communicate with the jury officer later this afternoon, but the position is going to be that you should be here to continue tomorrow. If you are not going to be required to attend tomorrow, you'll be told that this afternoon. But otherwise you should be prepared to come and continue at 10.30 tomorrow. All right?

We've had a lot of breaks and there comes a time when we can't just keep on having more and more breaks because otherwise it would be inappropriate. So that's the situation: not required today, but required tomorrow, unless you're advised otherwise this afternoon. All right? I hope that makes sense and you'll understand what is happening and why it's happening.

There's another matter which doesn't concern you in any event, with which I can deal today, but thank you very much. I'm sorry about this, but as I said, at the very outset, you may or may not remember, I told you this back in October, none of us knows what's going to happen in the future and events do occur that are unexpected and we've had quite a few unexpected events during the course of this case. There's nothing we can do about it, it's a human situation. All right?

Thank you very much indeed.

Remember your responsibilities: don't communicate with anyone, other than each other when you're all together, about anything to do with this case.

Thank you very much.

(In the absence of the jury)

MR MYERS: My Lord, it occurs to me, of course, that Ms Letby has no inkling of the situation we are dealing with.

MR JUSTICE GOSS: Yes.

MR MYERS: It may well be that -- we're obviously not able to speak to her at the moment. It may be that the court liaison officer sees her again later today. She may well be in a position to know what the situation is. Is there any objection to Ms Letby at least knowing the reason for the juror's non-attendance if the court liaison officer has that information?

MR JUSTICE GOSS: Mr Johnson, can you see any reason why she should not...?

MR JOHNSON: No.

MR MYERS: So she's aware as she can be of what's happening.

MR JUSTICE GOSS: It is just a life event that is in progress.

MR MYERS: We'd be grateful if she could at least be informed of that by the court liaison officer.

MR JUSTICE GOSS: No problem at all.

So far as this issue that's arisen over the weekend is concerned, as I say, I shall read through this, Mr Myers. Would you discuss with Mr Johnson how you wish to proceed then thereafter as to whether he would like a written response before we address it or whether we'll just -- once you have read it, studied it and considered it, and I have, whether we just deal with it in court at a time that's convenient to everybody? I'll be here all day anyway.

MR MYERS: Thank you. We should be able to deal with it within -- subject to your Lordship being free to do so, certainly within the next 45 minutes maybe or so.

Unless there's anything particularly complex that needs to be reduced to writing, but we'll inform your Lordship when I've spoken to Mr Johnson.

MR JUSTICE GOSS: Keep me informed, certainly. Thank you very much. I'll just explain to the defendant what is happening.

MR MYERS: Thank you.

MR JUSTICE GOSS: Ms Letby, as you've heard, there is a juror who's not present and can't be present today.

We'll know more about the situation later today and certainly by tomorrow morning, as I told the jury. So we can't obviously proceed with the trial and therefore with your evidence.

There is a matter that's arisen between the prosecution and those who represent you in relation to the admissibility of some evidence. I'm going to read what that issue is, read about it, Mr Myers is reading about it and considering it and is going to let me know what the defence position is and then I will come back into court. Obviously, you will be back in court as well when I come back into court and we will deal with that particular issue. So it's a matter of essentially law for me to deal with. All right? Thank you very much. I don't know whether the lady from the court will be able to go down and see you some time today. I expect she will be certainly going down some time today.

MR MYERS: Yes, we'll try to make arrangements for that, my Lord.

MR JUSTICE GOSS: Sorry, I've forgotten her name.

MR MYERS: Ms Santolini.

MR JUSTICE GOSS: Ms Santolini will be down to see you at some stage -- maybe not now, it may be later today depending on her commitments. All right?

It'll be at least three-quarters of an hour before we sit again.

(10.42 am)

(Adjournment)

(12.23 pm)

(No audio from court)

MR JUSTICE GOSS: -- issue between the prosecution and the defence this relation to this. Is it simply that the jury should not have paper copies of it or that the prosecution are in some way debarred from putting this in evidence in cross-examination, putting what was said in the interviews in cross-examination?

MR MYERS: There are some passages the prosecution wish to introduce which have just been sent to us now. There's an email from Mr Johnson which identifies specific passages. I should say that the original request we received was to put in the whole of the interview unedited, which we didn't want.

Then we received Mr Johnson's application this morning, which seemed to be referring to a passage that was attached -- well, a number of pages attached to that application that the prosecution wished to introduce.

That's how we read that.

MR JUSTICE GOSS: Yes, that was B rather than the first -- rather than the pages of extract from the transcript.

MR MYERS: Originally we were requested to agree to the whole interview going in.

MR JUSTICE GOSS: Ah, right. Okay.

MR MYERS: And then we received this morning what looked like a number of pages to be added with particular matters highlighted. Mr Johnson's just emailed us now, and I anticipate your Lordship, identifying specifically sections which are redacted

with red type or crossed through with red type and, as I understand it, they are the sections the prosecution wish to introduce. So it's rather less than the whole of the interviews we had first understood it to be.

MR JUSTICE GOSS: Right.

MR MYERS: Perhaps it's easier if he explains what it is, but the position has changed so far as we could see.

MR JOHNSON: Well, it hasn't really changed. The position is that when this issue arose last week we emailed the defence on Friday afternoon saying: we propose to put in more of this interview, please reply with your proposals telling us which bits you say in any event are inadmissible. That email went unanswered.

MR JUSTICE GOSS: Right.

MR JOHNSON: So that's the starting point. The confusion -- then there has been an element of confusion that's arisen on our side because I asked for a copy of the interview with the bits highlighted that had been edited out, which is what I appended to our application.

MR JUSTICE GOSS: Ah, right.

MR JOHNSON: That was erroneous in the sense that there was a failure of communication on our side in the sense that it was thought that what I had asked for was the relevant bits which had been edited out. That's why, for example, the bit about Dr Evans has remained in.

It has never been our proposal to put that in and this could all have been sorted out over the weekend if we'd had a response, but we hadn't, so we are where we are.

MR JUSTICE GOSS: Thank you. I wasn't entirely clear.

Would it help if I look at what you've submitted as the latest -
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MR JOHNSON: I think it would.

MR JUSTICE GOSS: That will probably be the shortest way of dealing with this.

MR JOHNSON: I think so. As soon as the fact that there are crossed wires between us became apparent I then got the full version and highlighted it, so the bits in -- the way -- what your Lordship should receive, and it won't work if it's not been printed in colour, is the full interview as it originally stood.

Then, crossed through and highlighted, are the bits that have been taken out.

What I have done to clarify the position is of those parts that have been taken out, I have put some bits in red font, which are the bits I want to reintroduce.

MR JUSTICE GOSS: Right.

MR JOHNSON: So that's the code, if you like.

MR JUSTICE GOSS: All right. Let's just start from first principles. These interviews in their entirety are in evidence?

MR JOHNSON: They are.

MR JUSTICE GOSS: So on the face of it, anyone can refer to any of them.

MR JOHNSON: Yes.

MR JUSTICE GOSS: This is why I was just enquiring whether it is in written form that the objection is being taken.

I'll clarify this with Mr Myers. There can in principle be no objection to you cross-examining about specific questions and specific answers in any of the interviews.

MR JOHNSON: That's the basis of our application.

MR JUSTICE GOSS: Right, thank you. Mr Myers, do you agree with that?

MR MYERS: Yes, matters arising in cross-examination. It's important, I make it quite clear, my Lord, the request was to place the entirety --

MR JUSTICE GOSS: Yes, all right.

MR MYERS: I hear what was said and the request we received was that. I apologise for the delay of 2 days, we responded yesterday in fact, to say we couldn't agree to that and that's not surprising.

MR JUSTICE GOSS: I don't want to get involved in the blame game here, I want to try and resolve this issue. All right? So we are where we are now --

MR MYERS: Yes.

MR JUSTICE GOSS: -- and the issue is, I will see it in a moment when my laptop is brought in. I very nearly brought it in, not having seen this further email, but just because I might, for example, have wanted to look at the transcript, as I have done. I've re-read the transcript of your cross-examination of Dr Jayaram to see precisely what it was that was put on the defendant's behalf, which I have re-read.

MR MYERS: I'm grateful, my Lord.

MR JUSTICE GOSS: It was a -- it brought back to mind the extent and the nature of that cross-examination, of which I have a memory.

(Pause)

I actually have a printed-off copy, which -- I'll show you what it looks like. Where it is hatched in red, is that what you're wanting in, Mr Johnson?

MR JOHNSON: No. I can talk your Lordship through it page by page. That's probably the easiest way.

MR JUSTICE GOSS: There's no need. On the copy that I've got here, I've got sections which are shaded and have lines through them. Then I have others that are just unedited in any form.

MR JOHNSON: The problem is going to be -- because where I have changed black text to red text, there won't be a difference.

MR JUSTICE GOSS: I'll look at it then.

MR JOHNSON: If your Lordship goes, please, to page 4 of 6.

There are only six pages.

MR JUSTICE GOSS: I was trying to short circuit things.

MR JOHNSON: You can do it on the paper version, my Lord, by just putting a line against the relevant -- because there isn't much.

MR JUSTICE GOSS: I can see now I've got it in colour. I've got text in red with the -- yes, okay, got it.

MR JOHNSON: It is crossed through and highlighted because it has been taken out, then converted from black to red text because we want to reintroduce it.

MR JUSTICE GOSS: The red text is what you want to reintroduce? Okay, right, thank you, I understand.

Sorry for being so slow. Without it being in colour, it's impossible. Right. Let me just read the red text through then.

(Pause)

Yes, right.

MR MYERS: This is minimal compared to what we understood we were dealing with to begin with. If these questions were asked of the defendant, as we have it here, in the course of cross-examination, I doubt very much that any issue would have arisen as to that. It was the prospect of what we considered and what we were told was quite a large body of material that was going to the defendant that caused us the concern we had.

MR JUSTICE GOSS: All right, Mr Myers. I entirely understand what you are saying. If it's of any reassurance to you, I was unhappy about the jury having pages and pages more by way of material, but that was a misunderstanding.

MR MYERS: Yes.

MR JUSTICE GOSS: Where we are now, it is just this very limited --

MR MYERS: Yes.

MR JUSTICE GOSS: -- aspect?

MR MYERS: Focused, and we have nothing to say as to that.

The extent -- we do just raise this signal warning: the suggestion that his credibility or accuracy was not in dispute until the time she came to give evidence is, we respectfully submit, not right because there was a very broad attack on his credibility and accuracy in the course of cross-examination. But as to --

MR JUSTICE GOSS: Indeed there was the question, I can't remember the precise words, but there was the question that if this had happened in the way that you have described then you would have done these things --

MR MYERS: Yes.

MR JUSTICE GOSS: -- and he went through -- so there was this sort of broad challenge to the description that Dr Jayaram gave and you gave all the various reasons why he should not be believed in relation to that. But you didn't specifically put to him the point that she was not standing by the cot when he

walked in. I think that's where I can see there's the misunderstanding.

I don't want to go back into history in relation to this, I just want to see where we're going forward.

MR MYERS: Yes. We did make it plain, though, we didn't accept the accuracy of the allegation --

MR JUSTICE GOSS: Exactly.

MR MYERS: -- (overspeaking) every material of it, maybe that wasn't so --

MR JUSTICE GOSS: Don't worry. I remember when I used to cross-examine in the past, sometimes it was unhelpful to go through every single minutiae. But there we are.

We are where we are now. Are you saying now you are content or not?

MR MYERS: No, if these matters had arisen in the course of cross-examination and put to her like that, it would be difficult to object to that in the course of cross-examination, therefore we don't proceed with the objection because we understand now what it is the prosecution wish to put.

MR JUSTICE GOSS: Good, excellent. Well, thank you very much. As I say, I don't want either side to feel that they've been difficult or awkward or anything like that.

It's unfortunate but these things arise. There's a huge amount of material in this case and there's a lot of things that have to be done during the course of it, not just confined to these minutiae, which assume further importance when the case develops. So I'm not critical of anyone in relation to this. Mr Johnson, there you are, you can have it.

MR JOHNSON: The issue, just for the sake of clarity then, given that I may have misunderstood things, is there an objection to us giving the jury this part of it in writing?

MR JUSTICE GOSS: No, not as far as I understand -- if necessary. The point is you could have, and I was going to say, you could have asked to put these in any event because I didn't see how -- on what basis you could not.

MR JOHNSON: That's, with respect, what we thought as well.

MR JUSTICE GOSS: The only issue is whether they need it further in writing or not. But technically they could have it in

writing. Whether it's going to be necessary for them to have it in writing, I question, to be perfectly honest.

MR JOHNSON: I understand that questioning, my Lord, but sometimes things get lost in translation, particularly when one has moved on to other cases and no doubt this is something that certainly would form part of the final submissions from us and the jury having this in writing, we believe, would actually assist.

MR MYERS: With that in mind there's one additional matter we identified in our response, that if this is to be an issue, it should also be put, which we can do in re-examination, which relates to the purported inability to dislodge a tube because [Baby K] was said to be sedated at the time, which she wasn't, and we're going to deal with that and before it goes to the jury in writing we would like that adding to the material to go to the jury. It's only a couple of lines.

MR JUSTICE GOSS: There can't be any objection to that.

MR JOHNSON: Not at all.

MR MYERS: I'm grateful, thank you.

MR JOHNSON: If we could just have, so that we don't make a mistake, have it in writing precisely what is sought to be reintroduced then we will have it all printed up so it runs sequentially with everything the jury have.

MR JUSTICE GOSS: It might be helpful to have that when we -- certainly by the time we get to the cross-examination. But have it in its entirety. If you want to stand by the rules and say, well, that should be reintroduced --

MR JOHNSON: No, no.

MR JUSTICE GOSS: Exactly. It's much better to have one more document with that in and we can do it in that way.

Thank you.

Yes, I had, in my re-reading of the cross-examination, picked up that point, Mr Myers, about the dislodging of the tube and the sedation and the time of sedation and noticed that in the cross-examination.

MR MYERS: I'm obliged, my Lord, thank you.

MR JUSTICE GOSS: Right. The juror who was absent this morning is going to provide further information this afternoon so I will

have further information this afternoon. I obviously won't disclose what has been said, but she is obviously aware of the difficulty that is being caused in terms of the progress of this trial and the stage we are at. I think she is quite clearly very conscientious and wants to continue.

MR MYERS: Very well, my Lord.

MR JUSTICE GOSS: They're very unfortunate circumstances and we seem to have had quite a lot of this sort of thing during this case. But I'm sure she will do her level best. So we'll just have to wait and see where we are tomorrow morning.

MR MYERS: Yes, that's all we can do, my Lord.

MR JOHNSON: Could I just make one enquiry: the position on Friday was left slightly uncertain as to --

MR JUSTICE GOSS: What is the matter on Friday?

MR MYERS: A medical appointment for one of the jurors.

MR JUSTICE GOSS: Oh gosh, yes, it was.

MR MYERS: It was a timing issue.

MR JUSTICE GOSS: The situation is that the appointment has been moved forward to the morning so we could sit on Friday afternoon.

MR MYERS: Very well.

MR JUSTICE GOSS: So I think we should wait and see where we are, but that appointment has been changed so that will be it. Thank you. The clerk of the court had reminded me of that and I'm afraid I'd forgotten about that.

MR JOHNSON: There's a lot of balls in the air.

MR JUSTICE GOSS: Yes, and so many days that issues have arisen. So if we are sitting on Friday it will be afternoon and I'm hoping by "afternoon" that could mean perhaps at 1 o'clock.

MR MYERS: Yes, very well.

MR JUSTICE GOSS: Do you see what I mean, rather than a formal 2 o'clock?

MR MYERS: To try and recover the time we've lost.

MR JUSTICE GOSS: Yes, and have a substantial break mid-afternoon. We'll revisit that. Thank you. It was me whose memory was failing in relation to that.

I don't think there's anything else that we can deal with.

MR MYERS: My Lord, no, thank you.

MR JUSTICE GOSS: As I say, I shall be here in any event until the normal end of court sitting time if I'm needed in relation to anything, but thank you both very much.

When I say both, that's all of you.

(12.41 pm)

(The court adjourned until 10.30 am on Wednesday, 31 May 2023)